

Employee Conduct Policy

Every employee is expected to act in a professional, responsible, and courteous manner at all times. Clearly, such behavior fosters a positive and productive working environment. Conversely, inappropriate or unprofessional behavior is disruptive and unproductive. Moreover, inappropriate conduct is cause for discipline, up to and including immediate termination.

Of course, in the context of this manual, it is impossible for the company to identify all standards of conduct that are unacceptable. Again, the company demands that employees act in a professional and courteous manner. We expect that employees will use common sense and good judgment in achieving this goal. However, the company's judgment, and not that of any individual employee, is the benchmark for what is acceptable and what is not. An employee's conduct is not made acceptable solely because the employee believes it to be. Nor may an employee excuse his or her conduct because this manual does not specifically prohibit the objectionable conduct. The company expects that employees recognize that inappropriate conduct, from rudeness to theft, is unacceptable. The decision as to what is inappropriate is left in the company's hands and sole discretion.

Nothing in this policy is intended to restrict, or should be interpreted or applied to restrict, employees' rights under Section 7 of the National Labor Relations Act to discuss wages, hours, or other terms and conditions of employment, or to otherwise engage in protected concerted activity.

Virtually every employee manual contains a policy on employee conduct standards. While employee conduct standards are generally no more than a recitation of platitudes and common sense, the policy addresses the workforce's lowest common denominator. The policy must be written to create and foster a common expectation regarding workplace behavior. Oftentimes, these policies contain a long list of unacceptable conduct (e.g., possession of an illegal firearm). Such a policy is

necessary in many workplaces, but employers should not create such a policy in a haphazard manner. Employers should put real thought into what unacceptable conduct it anticipates. When a listing is used, the list should always include a catchall provisions so that employees understand that the list is illustrative.